

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Robert E. Blackburn**

Date: July 7, 2011

Deputy Clerk: Nel Steffens
Court Reporter: Suzanne Claar

Civil Action No. 09-cv-02977-REB-KLM

Parties:

IOWA PACIFIC HOLDINGS, LLC,

Plaintiff,

Counsel:

Robert Smeltzer
Brian Orr

v.

NATIONAL RAILROAD PASSENGER
CORPORATION,

Defendant.

Daniel Dunn
David DeMarco

COURTROOM MINUTES

Trial to Jury - Day Seven

9:02 a.m. Court in session.

Jury is in deliberations.

Appearances of counsel. Also seated at plaintiff's table is Dan Marko.

Court's opening statements.

9:04 a.m. Closing argument as to promissory estoppel by Mr. Smeltzer.

9:20 a.m. Closing argument as to promissory estoppel by Mr. Dunn.

9:40 a.m. Response by Mr. Smeltzer.

The Court takes the matter under advisement and will issue its written findings of fact, conclusions of law, and orders as soon as practicable.

Unless sooner called, the Court will reconvene at 4:45 p.m.

9:51 a.m. Court in recess.

2:03 p.m. Court in session.

Jury is not present.

Court informs counsel that the bailiff has informed the Court that the foreperson has reported the jury has reached a unanimous verdict.

2:05 p.m. Jury is present.

Foreperson confirms that the jury has reached a unanimous verdict and delivers same to the Court via the bailiff.

Court reads the verdict¹.

Court polls the jurors.

2:11 p.m. Jury is given its closing trial instructions, including the prohibition against contact from counsel and parties, given the thanks of the court, and is discharged.

2:13 p.m. Jury exits.

Court's findings and conclusions regarding the defendant's oral motion for judgment as a matter of law under Rule 50(a).

IT IS ORDERED as follows:

1. That the defendant's oral motion for judgment as a matter of law under Rule 50(a) is **DENIED**;
2. That on the verdict of the jury, judgment shall enter as prescribed under Rule 58;
3. That costs shall be taxed as prescribed under Rule 54(b)(1) and Local Rule

¹ Pursuant to General Order 2007-3 the original Jury Verdict has been filed conventionally by delivery to the clerk's office. A representation of the Jury Verdict is attached to the court minutes.

54.1; and

4. That motions seeking post-trial relief under a specific Federal Rule of Civil Procedure shall be initiated, marshaled, and determined in the time and manner described in that apposite Rule of Civil Procedure.

Court's closing remarks.

2:15 p.m. Court in recess.

Total time in court: 01:01

Trial concluded.